

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CALVIN PRENTICE NOEL WELCH,

Petitioner

VS.

KHANH PHAM,

Respondent

) Case Number: FDI-23-798807

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME),
LOAN ASSUMPTION, CLARIFY VISITATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Calvin Welch (Father) and Respondent Khanh Pham (Mother) married on 4/16/2010 and separated on 9/25/2018, for a marriage of 8 years and 6 months. The parties have one child, Lucas (DOB: 10/5/2010, age 16).
- 2) On 4/18/2025, the Court entered a True Default Judgment which includes orders awarding joint legal and physical custody of Lucas to both parties, ordering Father to pay Mother \$300 per month in child support and awarding Mother sole ownership of the real property located at 35191 Harpoon Close, Sea Ranch, CA 95497.
- 3) On 2/11/2026, Father filed a Request for Order seeking a timeshare schedule for Lucas and requesting an order requiring Mother to be solely responsible for all carrying costs for the Sea Ranch property.
- 4) On 3/16/2026, Mother filed a Responsive Declaration opposing Father's proposed timeshare schedule. As for the Sea Ranch property, Mother states she is "willing to pursue loan assumption

1 as required by the Judgment. Based on communication with the loan assumption consultant at
2 Chase, the loan assumption process may take approximately six to seven months, as it is subject
3 to lender approval, underwriting, and processing timelines. I respectfully request reasonable time
4 consistent with the lender's requirements to complete the process.”

5 5) On 3/17/2026, Father filed a second Request for Order seeking the same relief as set forth in
6 Father’s 2/11/2026 Request for Order.

7 6) Per the Proof of Service filed 4/24/2026, Mother was personally served with Father’s Request for
8 Order, the Tentative Ruling Instructions, and other moving papers by mail on 4/24/2026.

9 7) On 6/29/2026, a Child Custody and Visitation Stipulation and Order was entered which provides
10 that the parties’ child will begin individual therapy, will have visitation with Father on the second
11 Saturday of each month, and will have dinner with Mother and Father’s family one Sunday per
12 month.

13 **B. Findings and Order**

14 1) Effective immediately, Mother shall be solely responsible for all carrying costs, including all
15 mortgage payments, taxes, insurance, and other property-related expenses, for the real property
16 located at 35191 Harpoon Close, Sea Ranch, CA 95497.

17 2) Mother shall use her best efforts to assume the mortgage for the Sea Ranch property as soon as
18 possible. Mother shall keep Father updated regarding the status of her efforts.

19 3) The Court will prepare the Findings and Order After Hearing.
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